

Suresh v. State of U.P. & Anr.

High Court of Judicature at Allahabad · Division Bench · 21 November 2012 · Writ-C No. 60205 of 2012 · **Writ disposed of; petitioner relegated to complaint under clause 6.5.**

HEADNOTE

A writ seeking quashing of an electricity demand notice is not entertainable when clause 6.5 of the U.P. Electricity Supply Code, 2005 affords a statutory complaint; the consumer was left to that remedy.

FACTUAL SUMMARY

Suresh petitioned to quash a demand notice dated 20 January 2012 for Rs. 1,55,856 as electricity dues. He alleged that the connection had already been disconnected in 1997, yet the Corporation issued the demand years later. The State and the electricity corporation appeared. The Division Bench considered whether the writ should be entertained in the face of the Supply Code complaint mechanism.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-objection-to-executive-engineer-under-6.5

HOLDING

Where a consumer challenges an electricity demand notice in writ, and clause 6.5 of the U.P. Electricity Supply Code, 2005 provides a statutory complaint in which all grievances can be raised, the writ is not entertainable and the petitioner must avail that remedy. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE DEMAND OF RS. 1,55,856 AFTER THE 1997 DISCONNECTION WAS LAWFUL

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